

The first, maketh men invade for Gain ; the second, for Safety ; and the third, for Reputation. The first use Violence, to make themselves Masters of other mens persons, wives, children, and cattell ; the second, to defend them ; the third, for trifles, as a word, a smile, a different opinion, and any other signe of undervalue, either direct in their Persons, or by reflexion in their Kindred, their Friends, their Nation, their Profession, or their Name.

Out of Civil States, there is alwayes Warre of every one against every one.

Hereby it is manifest, that during the time men live without a common Power to keep them all in awe, they are in that condition which is called Warre ; and such a warre, as is of every man, against every man. For WARRE, consisteth not in Battell onely, or the act of fighting ; but in a tract of time, wherein the Will to contend by Battell is sufficiently known : and therefore the notion of *Time*, is to be considered in the nature of Warre ; as it is in the nature of Weather. For as the nature of Foule weather, lyeth not in a showre or two of rain ; but in an inclination thereto of many dayes together : So the nature of War, consisteth not in actuall fighting ; but in the known disposition thereto, during all the time there is no assurance to the contrary. All other time is P E A C E.

The Incommodities of such a War.

Whatsoever therefore is consequent to a time of Warre, where every man is Enemy to every man ; the same is consequent to the time, wherein men live without other security, than what their own strength, and their own invention shall furnish them withall. In such condition, there is no place for Industry ; because the fruit thereof is uncertain : and consequently no Culture of the Earth ; no Navigation, nor use of the commodities that may be imported by Sea ; no commodious Building ; no Instruments of moving, and removing such things as require much force ; no Knowledge of the face of the Earth ; no account of Time ; no Arts ; no Letters ; no Society ; and which is worst of all, continuall feare, and danger of violent death ; And the life of man, solitary, poore, nasty, brutish, and short.

It may seem strange to some man, that has not well weighed these things ; that Nature should thus dissociate, and render men apt to invade, and destroy one another : and he may therefore, not trusting to this Inference, made from the Passions, desire perhaps to have the same confirmed by Experience. Let him therefore consider with himselfe, when taking a journey, he armes himselfe, and seeks to go well accompanied ; when going to sleep, he locks his dores ; when even in his house he locks his chests ; and this when he knowes there bee Lawes, and publike Officers, armed, to revenge all injuries shall bee done him ; what opinion he has of his fellow subjects, when he rides armed ; of his fellow Citizens, when he locks his dores ; and of his children, and servants, when he locks his chests. Does he not there as much accuse mankind by his actions, as I do by my words ? But neither of us accuse mans nature in it. The Desires, and other Passions of man, are in themselves no Sin. No more are the Actions, that proceed from those Passions, till they know a Law that forbids them : which till Lawes be made they cannot know : nor can any Law be made, till they have agreed upon the Person that shall make it.

It may peradventure be thought, there was never such a time, nor condition of warre as this; and I believe it was never generally so, over all the world: but there are many places, where they live so now. For the savage people in many places of *America*, except the government of small Families, the concord whereof dependeth on naturall lust, have no government at all; and live at this day in that brutish manner, as I said before. Howsoever, it may be perceived what manner of life there would be, where there were no common Power to feare; by the manner of life, which men that have formerly lived under a peacefull government, use to degenerate into, in a civill Warre.

But though there had never been any time, wherein particular men were in a condition of warre one against another; yet in all times, Kings, and Persons of Soveraigne authority, because of their Independency, are in continuall jealousies, and in the state and posture of Gladiators; having their weapons pointing, and their eyes fixed on one another; that is, their Forts, Garrisons, and Guns upon the Frontiers of their Kingdomes; and continuall Spyes upon their neighbours; which is a posture of War. But because they uphold thereby, the Industry of their Subjects; there does not follow from it, that misery, which accompanies the Liberty of particular men.

To this warre of every man against every man, this also is consequent; that nothing can be Unjust. The notions of Right and Wrong, Justice and Injustice have there no place. Where there is no common Power, there is no Law: where no Law, no Injustice. Force, and Fraud, are in warre the two Cardinall vertues. Justice, and Injustice are none of the Faculties neither of the Body, nor Mind. If they were, they might be in a man that were alone in the world, as well as his Senses, and Passions. They are Qualities, that relate to men in Society, not in Solitude. It is consequent also to the same condition, that there be no Propriety, no Dominion, no *Mine* and *Thine* distinct; but onely that to be every mans, that he can get; and for so long, as he can keep it. And thus much for the ill condition, which man by meer Nature is actually placed in; though with a possibility to come out of it, consisting partly in the Passions, partly in his Reason.

The Passions that encline men to Peace, are Feare of Death; Desire of such things as are necessary to commodious living; and a Hope that incline by their Industry to obtain them. And Reason suggesteth convenient Articles of Peace, upon which men may be drawn to agreement. These Articles, are they, which otherwise are called the Lawes of Nature: whereof I shall speak more particularly, in the two following Chapters.

CHAP. XIV.

Of the first and second NATURALL LAWES,
and of CONTRACTS.

Right of
Nature
what.

THE RIGHT OF NATURE, which Writers commonly call *Jus Naturale*, is the Liberty each man hath, to use his own power, as he will himselfe, for the preservation of his own Nature; that is to say, of his own Life; and consequently, of doing any thing, which in his own Judgement, and Reason, hee shall conceive to be the aptest means thereunto.

Liberty
what.

By LIBERTY, is understood, according to the proper signification of the word, the absence of externall Impediments: which Impediments, may oft take away part of a mans power to do what hee would; but cannot hinder him from using the power left him, according as his judgement, and reason shall dictate to him.

A Law of
Nature
what.

A LAW OF NATURE, (*Lex Naturalis*), is a Precept, or generall Rule, found out by Reason, by which a man is forbidden to do, that, which is destructive of his life, or taketh away the means of preserving the same; and to omit, that, by which he thinketh it may be best preserved. For though they that speak of this subject, use to confound *Jus*, and *Lex*, *Right* and *Law*; yet they ought to be distinguished; because RIGHT, consisteth in liberty to do, or to forbear; Whereas LAW, determineth, and bindeth to one of them: so that Law, and Right, differ as much, as Obligation, and Liberty; which in one and the same matter are inconsistent.

Difference of
Right and
Law.

Naturally e-
very man has
Right to eve-
ry thing.

And because the condition of Man, (as hath been declared in the precedent Chapter) is a condition of Warre of every one against every one; in which case every one is governed by his own Reason; and there is nothing he can make use of, that may not be a help unto him, in preserving his life against his enemyes; It followeth, that in such a condition, every man has a Right to every thing; even to one anothers body. And therefore, as long as this naturall Right of every man to every thing endureth, there can be no security to any man, (how strong or wise soever he be,) of living out the time, which Nature ordinarily alloweth men to live. And consequently it is a precept, or generall rule of Reason, *That every man, ought to endeavour Peace, as farre as he has hope of obtaining it; and when he cannot obtain it, that he may seek, and use, all helps, and advantages of Warre.* The first branch of which Rule, containeth the first, and Fundamentall Law of Nature; which is, *to seek Peace, and follow it.* The Second, the summe of the Right of Nature; which is, *By all means we can, to defend our selves.*

The Funda-
mentall Law
of Nature.

The second
Law of Na-
ture.

From this Fundamentall Law of Nature, by which men are commanded to endeavour Peace, is derived this second Law; *That a man be willing, when others are so too, as farre-forth, as for Peace, and defence*